

IN THE UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION

DEBRA NELSON

Plaintiff,

V.

Amentum Government Services Parent Holdings LLC, CLARENCE XANDER, JANICE HUGHES, HEATHER GUNN, DAKOTA THOMAS, ELIAS VELASQUEZ And USEF ABDUL-JAMI,

Defendants.

C.A. No.: 3:25-cv-01447-MCR-ZCB

PLAINTIFF'S REPLY TO DEFENDANTS' RESPONSE IN OPPOSITION TO
PLAINTIFF'S MOTION FOR LEAVE TO FILE SEVENTH AMENDED COMPLAINT

Plaintiff, Debra Nelson, appearing *pro se*, respectfully files this Reply to Defendants' Response in Opposition (Doc. 56) to her Motion for Leave to File a Seventh Amended Complaint (Doc. 54). Plaintiff seeks to amend her complaint to incorporate newly discovered facts and to cure deficiencies alleged in Defendants' Motion to Dismiss the Sixth Amended Complaint (Doc. 52). As set forth below, Defendants' arguments of futility and prejudice are without merit, and justice requires that leave to amend be granted.

I. INTRODUCTION

Defendants' opposition fundamentally mischaracterizes the standard for granting leave to amend under Federal Rule of Civil Procedure 15(a). The rule establishes a liberal policy in favor of amendment so that cases may be decided on their merits, not on technical pleading formalities. Plaintiff stands ready to proceed with the Seventh Amended Complaint as the operative pleading. Defendants' opposition is a transparent tactic that serves only to delay the proceedings and

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prevent this case from reaching the discovery phase. Any prejudice resulting from this extended amendment process is borne by the Plaintiff due to the delay, not the Defendants. Defendants' claim that the proposed Seventh Amended Complaint ("SAC") is futile applies an improperly heightened standard, viewing the allegations in the light most favorable to themselves rather than the Plaintiff. The SAC cures the deficiencies Defendants previously identified and pleads plausible claims for relief under the governing law. Accordingly, Plaintiff respectfully requests that the Court grant her motion.

II. ARGUMENT AND CITATION TO AUTHORITY

A. Leave to Amend Should Be Freely Granted Under Rule 15(a).

Federal Rule of Civil Procedure 15(a)(2) provides that a court should "freely give leave [to amend] when justice so requires." This standard reflects a liberal policy of permitting amendment. *See Foman v. Davis*, 371 U.S. 178, 182 (1962). The Eleventh Circuit has made clear that "unless a substantial reason exists to deny leave to amend, the discretion of the district court is not broad enough to permit denial[.]" *City of Miami v. Bank of America Corp.*, 800 F.3d 1262, 1286 (11th Cir. 2015) (citation omitted).

Defendants' sole argument is that amendment would be futile. An amendment is only futile if the proposed complaint "would not survive a motion to dismiss." *Christman v. Walsh*, 416 F. App'x 841, 844 (11th Cir. 2011). This means the futility analysis is constrained by the plausibility standard of Rule 12(b)(6), where the Court must accept all factual allegations as true and construe them in the light most favorable to the plaintiff. Defendants' arguments improperly ask the Court to resolve factual disputes and draw inferences in their favor, which is inappropriate at this stage. As shown below, each count in the SAC contains sufficient factual matter to state a plausible claim for relief, and amendment is therefore not futile.

B. The Proposed Seventh Amended Complaint States Plausible Claims for Relief.

1. Count I – Gender Discrimination Under Title VII

Defendants' Argument: Defendants argue that amending Count I is futile because Plaintiff fails to plead an actionable adverse employment action or facts that support an inference of gender-

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based animus. They contend a “heavier workload” is not an adverse action and that terms like “aggressive” are not gender-coded. (Doc. 56 at 9-11).

Plaintiff’s Reply: Defendants apply an outdated and overly restrictive standard for what constitutes an adverse employment action. The Supreme Court recently clarified in *Muldrow v. City of St. Louis*, 601 U.S. 346 (2024), that a Title VII plaintiff need only show “some harm respecting an identifiable term or condition of employment.” *Id.* at 354-55. Alleging that Plaintiff was assigned “a heavier workload and time-consuming tasks” compared to her male colleagues (Doc. 55 at ¶ 96) plausibly alleges a disadvantageous change in her terms and conditions of employment that satisfies the *Muldrow* standard.

Furthermore, Plaintiff has plausibly alleged discriminatory animus. The allegation that male coworkers were not subject to the same “scrutiny and character attacks” and the use of terms like “aggressive” and “attitude” toward Plaintiff (Doc. 55 at ¶ 97) are sufficient at the pleading stage. Courts have recognized that such terms can be evidence of gender stereotyping. *See Hopkins v. Price Waterhouse*, 618 F. Supp. 1109, 1117 (D.D.C. 1985) (finding that describing a female employee as “macho” and needing a “course at charm school” was evidence of sex stereotyping). Whether these terms were used with discriminatory animus is a factual question not suitable for resolution on a motion to dismiss.

2. Count II – Retaliation Under Title VII

Defendants’ Argument: Defendants argue that Count II is futile because disciplinary warnings are not materially adverse actions and Plaintiff fails to plead but-for causation for her termination. (Doc. 56 at 13).

Plaintiff’s Reply: A “materially adverse” action is one that “might have dissuaded a reasonable worker from making or supporting a charge of discrimination.” *Burlington N. & Santa Fe Ry. Co. v. White*, 548 U.S. 53, 68 (2006). Plaintiff alleges Defendants “fabricated” disciplinary warnings. (Doc. 55 at ¶ 112). A fabricated disciplinary warning, which could lead to further discipline or termination, is more than a “petty slight” and could certainly dissuade a reasonable employee from engaging in protected activity. The context of these warnings, combined with other retaliatory conduct, makes this a plausible allegation.

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Regarding causation, but-for causation is the standard of proof, not a pleading requirement that must be met with direct evidence. At the pleading stage, a plaintiff must only allege facts that plausibly suggest retaliation was the but-for cause. *See Culp v. Reynolds*, No. CIV-19-1065-G, 2020 U.S. Dist. LEXIS 124118, at *12 (W.D. Okla. July 13, 2020) (noting that a plaintiff must show "a causal connection exists," which can be inferred from temporal proximity and other circumstances). Plaintiff's allegations of pretext and the timing of her termination relative to her protected activities are sufficient to plead a plausible causal link.

3. Count III – Hostile Work Environment Under Title VII

Defendants' Argument: Defendants assert that the alleged conduct—a single instance of shouting, dismissal of safety reports, and removal of an office—is not "severe or pervasive" enough to support a hostile work environment ("HWE") claim. (Doc. 56 at 15-16).

Plaintiff's Reply: The severe or pervasive standard requires an assessment of the "totality of the circumstances." *Miller v. Kenworth of Dothan, Inc.*, 277 F.3d 1269, 1275 (11th Cir. 2002). Defendants err by improperly disaggregating the alleged incidents. The SAC alleges a pattern of hostility, including being cursed and shouted at, having her safety concerns summarily "dismissed," being falsely accused of misconduct, and having her entire department's office space removed. (Doc. 55 at ¶ 105). When viewed collectively, these allegations plausibly depict a work environment permeated with hostility that was severe and pervasive enough to alter the terms and conditions of her employment. This is a fact-intensive inquiry that is generally unsuited for dismissal at the pleading stage.

4. Count IV – Defamation

Defendants' Argument: Defendants argue that the defamation claim is futile because the alleged statements were made between managerial employees and are therefore protected by the intra-corporate communication privilege. (Doc. 56 at 19-20).

Plaintiff's Reply: The intra-corporate communication privilege is qualified, not absolute. The privilege can be overcome by a showing of express malice or if the communication was made to an employee who did not have a corresponding interest or duty in the subject of the communication. *See Am. Airlines, Inc. v. Geddes*, 960 So. 2d 830, 833 (Fla. 3d DCA 2007).

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Plaintiff alleges the statements were false and published to "management and coworkers." (Doc. 55 at ¶ 108). The new allegation that the "communications are not privileged" (Doc. 55 at ¶ 109) is a short and plain statement of Plaintiff's legal contention that the privilege does not apply here, either due to malice or excessive publication. Who precisely received the communications and whether they had a "need to know" are factual questions that Plaintiff is entitled to explore through discovery.

5. Count V – Intentional Infliction of Emotional Distress (IIED)

Defendants' Argument: Defendants contend that the conduct alleged, including fabricating disciplinary records and shouting, does not meet Florida's high standard for "outrageous conduct" required for an IIED claim. (Doc. 56 at 21-22).

Plaintiff's Reply: While the standard for IIED is high, it can be met by conduct that is "so outrageous in character, and so extreme in degree, as to go beyond all possible bounds of decency." *Metro. Life Ins. Co. v. McCarson*, 467 So. 2d 277, 278–79 (Fla. 1985). The SAC alleges more than simple workplace conflict; it alleges a "coordinated fabrication of disciplinary records" specifically motivated by race and gender discrimination. (Doc. 55 at ¶¶ 112-113). A coordinated, discriminatory scheme to create a false record to justify terminating an employee, combined with verbal abuse like "shouting and cursing," plausibly alleges conduct that a jury could find to be extreme and outrageous. Florida courts have recognized that the outrageousness of conduct may arise from an abuse of power. *See, e.g., De La Campa v. Grifols Am., Inc.*, 819 So. 2d 940, 944 (Fla. 3d DCA 2002). The alleged conduct by those in a position of authority over Plaintiff is sufficient to state a plausible claim.

6. Count VI – Civil Conspiracy Under 42 U.S.C. § 1985(3)

Defendants' Argument: Defendants argue that this claim is barred by *Great Am. Fed. Sav. & Loan Ass'n v. Novotny*, 442 U.S. 366 (1979), because a § 1985(3) claim cannot be based on a deprivation of Title VII rights. (Doc. 56 at 27).

Plaintiff's Reply: Defendants misread the basis of Plaintiff's claim. The SAC does not allege a conspiracy to violate Plaintiff's Title VII rights. Rather, it alleges a conspiracy to deprive her of the "right to provide unimpeded federal testimony." (Doc. 55 at ¶ 117). This right is distinct from

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the substantive rights created by Title VII and is a right protected against private impairment. A conspiracy to intimidate a witness or party in a federal proceeding falls squarely within the ambit of § 1985. The holding in *Novotny* was narrow: it precluded using § 1985(3) as a conduit to assert a Title VII violation, thereby bypassing Title VII's comprehensive remedial scheme. It does not bar a § 1985(3) claim based on the obstruction of a federal proceeding, which is an independent constitutional wrong. Because Plaintiff's claim is premised on a right separate from Title VII, Defendants' futility argument fails.

C. Defendants Will Suffer No Undue Prejudice From the Amendment.

Defendants have failed to identify any specific, undue prejudice they would suffer if the amendment were granted. Their opposition rests entirely on futility. The procedural history reveals a pattern of litigation designed to prolong the pleading stage indefinitely: Defendants file a motion to dismiss, and Plaintiff, a *pro se* litigant, endeavors to amend her complaint to address the alleged deficiencies. Plaintiff has acted in good faith to cure the issues raised by Defendants and the Court, and this amendment represents a diligent effort to establish a complaint that can proceed to discovery.

Denying leave now would effectively reward Defendants' delay tactics. Granting leave, however, serves the interests of justice and judicial economy by allowing this case to finally move forward on its merits. The true prejudice in this case is the ongoing delay that prevents Plaintiff from conducting discovery and seeking a resolution of her claims.

III. CONCLUSION

For the foregoing reasons, Defendants have failed to establish that allowing Plaintiff to file her Seventh Amended Complaint would be futile. The proposed complaint states plausible claims for relief under the liberal pleading standards of the Federal Rules. Further delay would only prejudice the Plaintiff, and this case should be permitted to proceed on the merits based on the Seventh Amended Complaint.

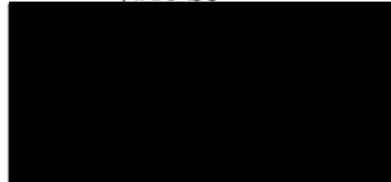
WHEREFORE, Plaintiff Debra Nelson respectfully requests that this Court grant her Motion for Leave to File Seventh Amended Complaint (Doc. 54) and for all other relief this Court deems just and proper.

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Respectfully submitted 28th of March, 2026,


Debra Nelson

Plaintiff, Pro Se



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CERTIFICATE OF SERVICE

I hereby certify that a true and correct copy of the foregoing **Plaintiff's Reply to Defendants' Response in Opposition to Plaintiff's Motion for Leave to File Seventh Amended Complaint** was served upon counsel for Defendants by email addressed as follows:

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Respectfully submitted 28th of March 2026,



Debra Nelson

Plaintiff, Pro Se

